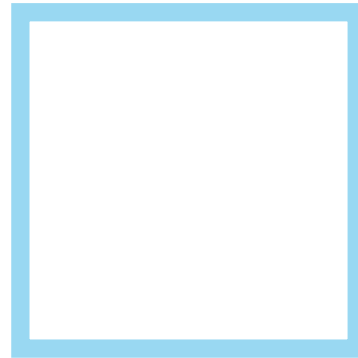


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SETTLEMENT BY INVESTMENT



LATEST NEWS: Full UK ETA Enforcement Announced for February 2026 (<https://immigrationbarrister.co.uk/full-uk-eta-enforcen>

LOCATION: HOME ([HTTPS://IMMIGRATIONBARRISTER.CO.UK/](https://immigrationbarrister.co.uk/)) » ...

SETTLEMENT BY INVESTMENT

The UK offers two routes to settlement by investment in the UK, under the **Tier 1 Investor** (<https://immigrationbarrister.co.uk/personal-immigration/investor-visas/tier-1-investor-visa-ilr/>) and **Tier 1 Entrepreneur** (<https://immigrationbarrister.co.uk/personal-immigration/uk-entrepreneur-visa/tier-1-entrepreneur-visa-ilr/>) categories of the points-based system.

What are the main eligibility requirements for Settlement by Investment?

Whichever category you apply under, in order to qualify for indefinite leave to remain you will need to satisfy UK Visas and Immigration that:

- You have spent a continuous period lawfully in the UK in a permitted category (ordinarily the continuous period will be 5 years, unless you are applying for accelerated settlement);
- You have not been absent from the UK for more than 180 days in any of the rolling 12 month periods preceding the date of application;
- You have sufficient knowledge of the English language (unless aged 65 or over);
- You have taken and passed the Life in the UK test (unless aged 65 or over).

Each of the investment related settlement categories also have their own additional eligibility criteria, which are summarised below.

What else do I need to know about Settlement by Investment?

If you qualify for settlement by investment, or indefinite leave to remain, you will be a stay in the UK without any time restrictions.

Your settled status will lapse if you are absent from the UK for more than 2 years. If your ILR has lapsed, you may wish to consider applying for a **Returning Resident** (<https://www.google.co.uk/search?q=https://immigrationbarrister.co.uk/personal-immigration/settlement-in-the-uk/returning-residents/>) visa in order to return to the UK.

Achieving permanent resident status is central to qualifying for a British passport, since **Naturalisation as a British Citizen** (<https://immigrationbarrister.co.uk/personal-immigration/british-citizenship/british-citizenship-naturalisation/>) requires that the applicant be settled in the UK.

You will not need to satisfy the English language requirement or pass the Life in the UK test if you are at least 65 years of age. The Home Office also has a discretion to waive the requirement if it would be unreasonable to expect you to fulfil that requirement due to a mental or physical condition. Various other exemptions also apply.

If you are already in the UK but are unable to satisfy the English language requirement, you may be able to extend your permission to stay, so that you can prove your knowledge of English.

How our immigration barristers can help

Our immigration barristers regularly advise and assist investors, entrepreneurs and their family members to achieve settlement by investment in the UK.

Whether you require expert advice on the requirements of the Immigration Rules, an independent assessment of your prospects of qualifying for settlement or professional assistance with preparing an application for indefinite leave to remain, our immigration barristers can help.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to family members as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Indefinite Leave to Remain as a Tier 1 Investor



Indefinite Leave to Remain as a Tier 1 Entrepreneur

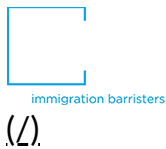


Indefinite Leave to Remain as a Family Member (Dependents)



Naturalisation as a British Citizen





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WHAT CAN WE HELP YOU WITH?

To arrange an initial consultation meeting with one of our immigration barristers, contact our Settlement by Investment visa team on 0203 617 9173 or complete our enquiry form.

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Tier 1 Investor Visa Application Deadlines

(<https://immigrationbarrister.co.uk/tier-1-investor-visa-application-deadlines/>)

By Paul Richmond - Managing Partner

20 Mar 2023

The Tier 1 Investor Visa route closed to new applicants on 17 February 2022. However, individuals who entered the Tier 1 Investor Visa category before it was suspended (and who currently have limited leave... <https://www.google.co.uk/g=richmond+chambers+in>)

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Tier 1 Investor Visa ILR: Residence and Absence Requirement

(<https://immigrationbarrister.co.uk/tier-1-investor-visa-ilr-residence-and-absence-requirement/>)

By Gillian McCall - Barrister Partner

03 Jun 2022

For many individuals who are looking to move themselves and their families to the UK using the Tier 1 Investor category, one of the biggest impediments is the perceived difficulty with satisfying the Tier 1 Investor...

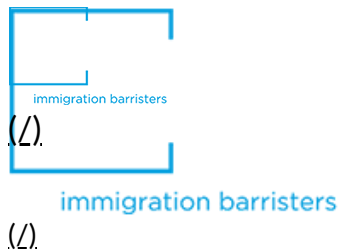
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LONDON OFFICE

Richmond Chambers LLP
Seven Henrietta Street
Covent Garden
London
WC2E 8PS

T / +44 0203 617 9173 (tel:+4402036179173)
E / info@richmondchambers.com (mailto:info@richmondchambers.com)

MONTREUX OFFICE

Avenue Des Alpes 80B
Montreux 1820
Switzerland

T / +41 21 588 07 70 (tel:+41215880770)
E / info@richmondchambers.ch (mailto:info@richmondchambers.ch)

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